
DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS

For

PINECREST MEADOWS HOMEOWNERS ASSOCIATION

Adopted by Board Resolution — March 15, 2022

Effective — April 1, 2022

ARTICLE I — PURPOSE AND AUTHORITY

Section 1.1 — Purpose

These Covenants, Conditions, and Restrictions (“CC&Rs”) are adopted for the protection, enhancement, preservation, and maintenance of property values, community aesthetics, and welfare within the Pinecrest Meadows subdivision (“the Community”).

Section 1.2 — Authority

This Declaration is enacted pursuant to applicable state statutes governing common-interest communities and forms a legally binding servitude running with all Lots within the Community.

Section 1.3 — Applicability

All owners, lessees, occupants, and successors shall be bound by and shall comply with these CC&Rs.

ARTICLE II — ASSESSMENTS, DUES, AND DELINQUENCIES

Section 2.1 — Regular Assessments

Each Lot is subject to annual assessments (“HOA Dues”) for common expenses. The annual assessment is **\$1,200.00 USD**, billed in **four equal quarterly installments of \$300.00**, payable on the **1st of January, April, July, and October** (“Due Date”).

Section 2.2 — Late Fees and Interest

A **\$35.00 Late Fee** shall be applied when payment is not received within **15 days after the Due Date** (“Late Fee Due Date”). If the balance remains unpaid **30 days after the Due Date**, interest shall accrue at **1.5% per month** on the outstanding amount.

Section 2.3 — Delinquency Enforcement

Unpaid assessments constitute a continuing lien on the Lot and may be subject to legal collection, lien filing, attorney fees, and suspension of voting rights and amenities.

Section 2.4 — Returned Payments

A \$25.00 fee shall be charged for returned or rejected payments.

ARTICLE III — ARCHITECTURAL CONTROL & EXTERIOR MODIFICATIONS

Section 3.1 — Architectural Review Requirement

No exterior construction, alteration, painting, fencing, structural addition, or modification shall commence until a written application is approved by the Architectural Review Committee (“ARC”).

Section 3.2 — Submission Requirements

Applications shall include plans, dimensions, materials, colors, proposed contractors, and timelines. The ARC shall approve or deny within **30 days**.

Section 3.3 — Prohibited or Restricted Modifications

Unless expressly approved, the following are prohibited:

- (a) Chain-link or wire fencing in front yards;
- (b) Exterior colors outside the approved palette;
- (c) Satellite dishes visible from the street;
- (d) Roofing materials not matching existing standards;
- (e) Window AC units visible from the front elevation.

Section 3.4 — Non-Compliance

Unapproved exterior work may be ordered paused or removed at the owner’s cost.

ARTICLE IV — LANDSCAPE & PROPERTY MAINTENANCE

Section 4.1 — Lawn Standards

Owners shall maintain lawns to a height not exceeding **five (5) inches**, remove weeds, trim shrubs, and keep all visible areas free of debris and stored materials.

Section 4.2 — Seasonal Requirements

Leaves shall be removed during fall season; dead trees or hazardous limbs must be removed upon notice.

Section 4.3 — Violation & Remedy

Upon violation, a written notice will be issued providing **ten (10) days to cure**. Failure to cure permits the HOA to correct the condition and charge the owner plus a **\$50 administrative fee**.

ARTICLE V — USE & OCCUPANCY RESTRICTIONS

Section 5.1 — Parking and Vehicles

No boats, RVs, trailers, or commercial vehicles shall be parked in driveways or streets for more than 48 consecutive hours without approval. Inoperable vehicles must be stored in a garage.

Section 5.2 — Pets and Nuisances

Domestic pets are permitted. Excessive noise, aggressive behavior, or failure to remove animal waste constitutes a violation. Livestock and breeding operations are prohibited.

Section 5.3 — Noise and Conduct

No owner shall create excessive noise or nuisance disturbing neighboring properties. Quiet hours are enforced daily between **10:00 PM and 7:00 AM**.

Section 5.4 — Trash and Recycling

Bins shall be stored out of street view except on collection days. Bulk items require special arrangement.

Section 5.5 — Leasing and Rentals

Leases must be a minimum of **30 days**. Short-term rentals (Airbnb/VRBO) are prohibited. Owners must provide the HOA with tenant contact information within **7 days** of occupancy.

ARTICLE VI — ENFORCEMENT, FINES, AND REMEDIES

Section 6.1 — Enforcement Powers

The Association may enforce these CC&Rs by written notice, fines, amenity suspension, self-help remedies, liens, or legal action.

Section 6.2 — Fines

Fines may be imposed for continuing or repeated violations. Fines shall accrue per day if violations remain uncured after notice.

Section 6.3 — Legal Recourse

The Association may recover attorney fees, costs, and interest in any enforcement action.

ARTICLE VII — AMENDMENTS AND SEVERABILITY

Section 7.1 — Amendments

These CC&Rs may be amended by majority Board approval and ratification by **67% of owners in good standing**.

Section 7.2 — Severability

If any provision is held invalid, the remainder of the CC&Rs remain enforceable.

CERTIFICATION

Approved and adopted by the Board of Directors of Pinecrest Meadows Homeowners Association on March 15, 2022, to be effective April 1, 2022.

— *Board of Directors, Pinecrest Meadows HOA*